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Case Number: 25NNCV00167 Hearing Date: September 2, 2026 Dept: T

David Samkow, et al. vs. Gore Malkhasyan, et al.

(1) Motion to Compel Defendants Gore Malkhasyan and Edita Malkhasyan's Further Responses to Requests for Production, Set One; (2) Motion to Compel Defendants Gore Malkhasyan and Edita Malkhasyan's Further Responses to Special Interrogatories, Set One

Moving Party: (1)–(2) Plaintiff David Samkow

Responding Party: (1)–(2) Defendants Gore Malkhasyan and Edita Malkhasyan

Tentative Ruling: (1) Grant in part, deny in part; (2) Grant in part, deny in part

BACKGROUND

This is a private nuisance action.

On March 27, 2026, Plaintiff David Samkow ("Plaintiff") served first sets of requests for production and special interrogatories on Defendants Gore Malkhasyan and Edita Malkhasyan ("Defendants").

On July 13, 2026, Plaintiff filed combined motions to compel further responses to each set of discovery propounded on Defendants.

On August 16, 2026, Defendants served supplemental responses to this discovery.

On August 18, 2026, the Court continued the hearing for the instant motions.

Defendants oppose, and Plaintiff replies.

ANALYSIS

I. Legal Standard

A. Requests for Production

Code of Civil Procedure section 2031.310(a) provides that “on receipt of a response to a request for production of documents, the demanding party may move for an order compelling further responses if: ۞۞۞

(1) A statement of compliance with the demand is incomplete. ۞۞۞

(2) A representation of inability to comply is inadequate, incomplete, or evasive. ۞۞۞

(3) An objection in the response is without merit or too general.” ۞۞۞۞ ۞۞

“The motion shall set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc. § 2031.310, subd. (b)(1).) “The motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc. § 2031.310, subd. (b)(2).)

۞ “Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand.” ۞ (Code Civ. Proc. § 2031.310, subd. (c).) ۞۞۞۞۞

“[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. § 2031.310, subd. (h).)

B. Special Interrogatories

Code of Civil Procedure section 2030.300(a) provides that “[o]n receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: ۞۞۞

(1) An answer to a particular interrogatory is evasive or incomplete. ۞۞۞

(2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate. ۞۞۞

(3) An objection to an interrogatory is without merit or too general.” ۞۞۞

۞ “Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories.” (Code Civ. Proc. § 2030.300, subd. (c).)

”The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. § 2030.300, subd. (d).)

II. Discussion

“Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc. § 2017.010.) “Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.” (Ibid.)

Initially, following Defendant’s service of supplemental responses on August 16, the Court notes that Plaintiff has narrowed the scope of the instant motions to the following requests and interrogatories that remain at issue: (1) Requests for Production numbers 14–18, 20–23, 25, and 29; and (2) Special Interrogatories numbers 14, 20, 23, 26, 31, 37, 39, 44, and 60–72.

Accordingly, the Court shall address the disputed supplemental responses in turn.

A. Requests for Production

In seeking to compel Defendants’ further responses to Requests for Production numbers 14–18 and 29, Plaintiff argues as follows: “Defendants’ responses to document requests concerning comparative fault, unclean hands, justification, consent, necessity, and failure to mitigate repeatedly point to the same permit receipt and general City material. The responses do not clearly say whether Defendants possess any other responsive documents for each distinct defense. Nor do they identify how the listed documents support each defense.” (Reply ISO MTCF Production Requests, at p. 3.)

Requests for Production numbers 14–18 and 29 seek all documents supporting Defendants’ first, fourth, fifth, eleventh, twelfth, and thirteenth affirmative defenses. (See Safarian Decl. ¶ 9, Exhs. F, I.)

In their identical supplemental responses to Requests for Production numbers 14–18 and 29, Defendants state as follows:

Responding Party has performed a diligent search and reasonable inquiry. Responding Party has complied fully with this request to the extent able, producing the November 22, 2023 receipt for \$914.82 from the City of Burbank’s Building Division, 150 N. Third Street, Burbank, California, as well as permit numbers BS2311614 dated November 22, 2023. Responding Party has been unable to locate any permit applications and, based upon a diligent search and reasonable investigation, is not aware of the existence of any inspection reports. To the extent any “applications” were generated in connection with the permits those would have been prepared by Armond Kalantar Moradian, (818) 223-7343 (unable to locate address after diligent investigation).

Additionally, there were multiple inspections by separate City of Burbank inspectors including Edward Khouradjan and Andrea Cisneros, 150 N. Third Street, Burbank, CA 91502, (818) 238-5225. Responding Party has performed a diligent search and reasonable inquiry as to those inspections and has no information that any formal writings were generated regarding same. To the extent any were generated, Responding Party is informed and believes the could be obtained from the City’s Department of Building & Safety, 150 North Third Street Burbank, CA 91502, (81) 238-5220.

(Safarian Decl. ¶ 9, Exhs. F, I.)

Although Defendants contend that these responses are code-compliant, given the language used in their responses, it is not apparent whether Defendants produced all unprivileged documents in their possession, custody, or control that are responsive to these requests.

Code of Civil Procedure section 2031.220 requires as follows: “A statement that the party to whom a demand for inspection, copying, testing, or sampling has been directed will comply with the particular demand shall state that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.”

Given this requirement, the Court finds that Defendants failed to provide code-compliant responses to these requests. However, to the extent that Plaintiff argues that each response is also deficient for failure to identify the responsive documents, “[t]here is no requirement that a response identify a document with the specific request to which the document applies.” (Pollock v. Superior Court (2023) 93 Cal.App.5th 1348, 1358.) Nevertheless, to the extent that Defendants failed to otherwise identify each of the documents produced in response to these requests with the specific request number to which the documents response, as required by Code of Civil Procedure section 2031.280(a), this deficiency also renders the responses non-compliant. (Cf. id. at p. 751 [finding that the plaintiff reasonably cured any defect under Section 2031.280(a) “by providing a 46-page table that listed by Bates number which documents applied to which requests”].)

Furthermore, in seeking to compel further responses to Requests for Production numbers 20–23, 25, Plaintiff similarly argues as follows: “The supplemental responses identify a contractor, a listing agent, City personnel, and certain permit and police documents. That information narrows the dispute. But the responses do not clearly identify the materials produced in response to each of RFPD Nos. 20 through 25 or clearly state whether Defendants have no responsive inter-defendant communications, contractor payment records, sale documents, or documents identified in the interrogatory answers.” (Reply ISO MTCF Production Requests, at pp. 3–4.)

In examining Defendants’ supplemental responses to Requests for Production numbers 20–23, 25, the Court finds that the same deficiencies in the statement of compliance in their responses to the other at-issue requests are likewise present here. (Safarian Decl. ¶ 9, Exhs. F, I.) Moreover, although Defendants appear to sufficiently identify some of the materials produced as responsive to each specific request, to the extent that Defendants failed to identify all of the documents produced in response to these requests with the specific request number to which the documents response, such deficiencies must be cured by ensuring that the responsive documents each comply with Section 2031.280(a).

Thus, the motion is granted as to Requests for Production numbers 14–18, 20–23, 25, and 29, and is otherwise denied. If Defendants have produced all unprivileged responsive documents in their custody, possession, or control for each of these requests, then Defendants must clearly state as such in their further responses. In addition, to the extent that they have not complied with Section 2031.280(a), Defendants must cure these defects in their further responses.

B. Special Interrogatories

In seeking to compel further responses to Special Interrogatories numbers 14, 20, 23, and 26, Plaintiff argues as follows: “Defendants’ responses remain noncommittal on core facts. They state only that the replacement fixtures were installed “sometime around March of 2024, but it could have been earlier”; that they ‘believe’ lighting was installed after permits issued but investigation continues; that there was no “typical” activation schedule; and that the dimmer modification occurred in ‘late-2023 or early-2024.’ These subjects—the installation timing, permit sequence, operation, and modifications—are central to the nuisance claim and defenses. Defendants must state the information reasonably available after a reasonable inquiry, including the basis for their estimates and the specific persons and records consulted. Only they would know when they installed the lights, through which contractors, and how the lights were operated during the relevant period.” (Reply ISO MTCF Special Interrogatories, at pp. 3–4.)

Similarly, in seeking to compel further responses to Special Interrogatories numbers 31, 37, 39, and 44, Plaintiff argues as follows: "The supplementation still supplies only broad periods—'various times between 2023 and 2024' and 'the first several months of 2024'—rather than the reasonably available dates or narrower timeframes requested. It also continues to give generalized summaries of City contacts and inspections without identifying the date and results of each identified inspection or test. The response to SROG 45 identifies participants in general terms, but does not eliminate the need for complete answers concerning the timing and substance of City contacts and inspections." (Reply ISO MTCF Special Interrogatories, at p. 4.)

As each of these interrogatories seeks information presumably available to Defendants, including information regarding the installation of exterior lighting fixtures on their property, the use of this lighting, and Defendants' communications concerning regarding the use and permitting of this lighting, the Court finds that the supplemental responses to the special interrogatories are incomplete and evasive. (See Safarian Decl. ¶ 9, Exhs. G, J.) Given the nature of the information sought, Defendants failed to specify why the requested information was unavailable to them and what efforts they made to obtain it. (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 782 [If only partial answers can be supplied, the answers should reveal all information then available to the party. If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control."].) Accordingly, the motion is granted as to these interrogatories.

However, with respect to Special Interrogatories number 60–72, the Court finds that each of the supplemental responses are code-compliant, as Defendants appear to have stated all of the facts supporting their affirmative defenses, and as Plaintiff fails to identify any deficiencies in the responses that would render them incomplete or evasive. (See Safarian Decl. ¶ 9, Exhs. G, J.) In particular, Plaintiff argues as follows: "The further responses continue to use essentially the same generalized narrative for distinct defenses. The response to the asserted privilege defense, for example, does not identify any privilege or legal basis. The consent and estoppel responses identify no specific act, statement, or date beyond the general assertion that Plaintiffs observed construction and did not object. The mitigation responses identify 'window coverings' and 'better communication' in the abstract, without identifying the measures Defendants contend were available, when they should have been taken, or why they would have eliminated the alleged intrusion." (Reply ISO MTCF Special Interrogatories, at p. 4.) Though Plaintiff attempts to frame these purported issues as factual deficiencies, the responses facially do not appear to be incomplete or evasive. Accordingly, the motion is denied as to these interrogatories.

Thus, the motion is granted as to Special Interrogatories numbers 14, 20, 23, 26, 31, 37, 39, and 44, and is otherwise denied.

C. Sanctions

In considering the submitted papers and evidence, as the Court finds that the imposition of monetary sanctions would be unjust under the circumstances, the parties' requests for sanctions in connection with the instant motions are denied in their entirety.

RULING

(1) Plaintiff David Samkow's Motion to Compel Defendants Gore Malkhasyan and Edita Malkhasyan's Further Responses to Plaintiff's Requests for Production, Set One, is GRANTED IN PART as to Requests for Production numbers 14–18, 20–23, 25, and 29, and is otherwise DENIED. Defendants' supplemental responses and document production (if any) are due within 20 days of this order.

(2) Plaintiff David Samkow's Motion to Compel Defendants Gore Malkhasyan and Edita Malkhasyan's Further Responses to Plaintiff's Special Interrogatories, Set One, is GRANTED IN PART as to Special Interrogatories numbers 14, 20, 23, 26, 31, 37, 39, and 44, and is otherwise DENIED. Defendants' responses are due within 20 days of this order.